

23BBCV02709 23BBCV02709

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-06-30

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Case Number: 23BBCV02709 Hearing Date: June 30, 2026 Dept: B

Superior Court of

California

County of Los Angeles

North

Central District

Department B

Stars Restoration Enterprises Inc. dba

Servpro of Monrovia,

Plaintiff,

v.

Isabel

Ducharme,

et al.,

Defendants.

Case No.: 23BBCV02709

Hearing Date: June 30, 2026

[TENTATIVE]

order RE:

Default Judgment

BACKGROUND

Plaintiff

Stars Restoration Enterprises Inc. dba Servpro of Monrovia (Plaintiff)

commenced the instant action on November 16, 2023 against defendants Isabel

Ducharme, Lisa Ducharme, and Does 1 through 50 (collectively, Defendants),

alleging causes of action for (1) breach of contract, (2) quantum meruit, (3) common

counts - accounts, (4) common counts – open book; and (5) enforcement of the

mechanics lien.

On

April 25, 2023, Plaintiff and Defendant Isabel Ducharme executed a written

contract for mitigation, remediation, contents, and asbestos abatement work at

1433 Millet Avenue in South El Monte (Subject Property). (Arteaga Decl., ¶ 4,

Ex. 1.) Plaintiff performed the work in

accordance with estimates that both Defendant and State Farm approved. (Id., at ¶ 7.) Plaintiff completed the work on or about

September 7, 2023. (Id., at ¶ 8.) In October 2023, State Farm issued payment to

Defendant for the approved work, and Defendant informed Plaintiff that she

received the insurance check. (Id.,

at ¶ 9.) Defendant did not remit payment

to Plaintiff. (Id., at ¶

11.) Plaintiff recorded a mechanics lien

on November 2, 2023, in the amount of 43,882.81.

On

December 22, 2023, defendant Isabel Ducharme filed an Answer to the Complaint.

On

February 20, 2024, the Court entered a Default against defendant Lisa Ducharme.

On

July 19, 2024, the Court granted Plaintiff's motion to deem Requests for

Admissions, Set One, admitted against defendant Isabel Ducharme.

On

October 31, 2025, the Court entered Plaintiff's Request for Dismissal of the 3rd

and 4th causes of action for common counts – accounts and

common-counts – open book.

On

October 31, 2025, the Court granted Plaintiff's motion for summary adjudication

on the first, second, and fifth causes of action for breach of contract,

quantum meruit, and to enforce the mechanics lien against defendant Isabel

Ducharme.

On

November 17, 2025, the Court entered Judgment against defendant Isabel Ducharme

for a total of \$57,300.12.

On

January 7, 2026, the Court entered Plaintiff's Request for Dismissal of the

first and second causes of action for breach of contract and quantum meruit

against defendant Lisa Ducharme.

On

January 16, 2026, Plaintiff filed an amendment to the Complaint to correct a

fictitious/incorrect name, specifically, changing Doe 1 to CFK Investments LLC

(CFK). The Summons and Complaint was

served on CFK via substituted service on February 19, 2026.

On

April 7, 2026, Plaintiff filed a Request for Entry of Default against CFK.

On

June 18, 2026, Plaintiff filed a Request for Court Judgment against CFK. Concurrently, the Court entered Plaintiff's

Request for Dismissal of DOES 1 through 50 as to all causes of action and its Request

for Dismissal of the first and second causes of action for breach of contract

and quantum meruit against CFK.

LEGAL STANDARD

Judgment

may be entered against a defendant by default where “the defendant has been served, other than by publication, and no answer, demurrer, [or other responsive paper] has been filed with the clerk of the court within the time specified in the summons” (Code Civ. Proc., § 585(b).) In such cases, the clerk shall enter default upon plaintiff’s written application and the plaintiff “thereafter may apply to the court for the relief demanded in the complaint.” (Ibid.)

A

party seeking a default judgment on declarations must use the mandatory form CIV-100 and also file with the clerk (1) a brief summary of the case, (2) declarations or other admissible evidence in support, (3) interest computations as necessary, (4) a memorandum of costs and disbursements, (5) a declaration of non-military status, (6) a proposed form of judgment, (7) a dismissal of all parties against whom judgment is not sought, (8) exhibits as necessary, and (9) a request for attorneys’ fees, if they are sought. (Cal. R. Ct., Rule 3.1800(a).)

DISCUSSION

California

Civil Code §8416(a)(2) allows a party to name either the owner or the reputed

owner on the mechanics lien. In

addition, if a party lists a reputed owner on a mechanics lien, the party shall

not lose their lien rights if afterwards the party ascertains that some other person

was the owner of the property. (Corbett v. Chambers (1895) 109 Cal. 178,

184.)

A

claimant who forecloses a mechanic's lien without joining all necessary parties

cannot subsequently assert priority over such parties or their successors. (Monterey

S. P. Partnership v. W. L. Bangham, Inc.(1989) 49 Cal.3d 454, 463.) Failure to join necessary parties in a

mechanic's lien foreclosure action precludes the claimant from asserting

priority over those parties. (Ibid.)

While the reputed owner may be named on a mechanics lien, the true owner

must be named in the lawsuit in order for Plaintiff to obtain a valid mechanics

lien judgment. (See Packard Bell Elecs. Corp. v. Theseus, Inc. (1966) 244

Cal.App.2d 355 [the court held that there was no enforcement of the mechanics

lien because Plaintiffs failed to properly name all interested parties in their

foreclosure action.])

Here,

Plaintiff asserts that during the course of litigation, Plaintiff performed a

deed search and became aware for the first time that the true owner of the Subject

Property is CFK. As such, Plaintiff

filed a DOE amendment as to CFK for the Mechanics Lien cause of action. CFK's answer to the Complaint was due on March

30, 2026. To date, CFK has not responded

to the Amended Complaint. However,

Plaintiff failed to provide any evidence other than its assertion of CFK's

ownership of the Subject Property.

Therefore,

the instant application for default judgment is continued to allow Plaintiff to

file supplemental filings, which includes supplemental declarations or exhibits

necessary to support its assertion that CFK is the true owner of the Subject

Property.

INTEREST, FEES, AND

COSTS

Plaintiff

requests an interest rate of 7% on its mechanics lien claim. (Carmel

Development Company, Inc. v. Anderson (2020) 48 Cal.App.5th 493, 526.)

The

Court's ruling as to interest, fees, and costs are concurrently continued.

CONCLUSION

AND ORDER

The

application for default judgment filed on April 7, 2026, is CONTINUED.

DATED: June 30, 2026

Victor

Avila

Judge

of the Superior Court